

UNITED STATES DISTRICT COURT
DISTRICT OF SOUTH CAROLINA
CHARLESTON DIVISION

Eugene Rowan	)	Case Number: 2:26-cv-02334-BHH
	)	
Plaintiff,	)	
	)	
vs.	)	<u>Complaint</u>
	)	(Jury Trial Demanded)
	)	(Negligence)
United States of America,	)	
	)	
Defendant.	)	
_____	)	

The Plaintiff, complaining of the Defendant above-named, hereby alleges and pleads as follows:

JURISDICTION

1. This action is brought pursuant to the Federal Tort Claims Act, 28 U.S.C. §2671 et seq. Jurisdiction is founded on 29 U.S.C. §§1346(b).

VENUE

2. In accordance with 28 U.S.C. §1391, venue is proper in the Charleston Division of the District of South Carolina as a substantial part of the events giving rise to the claim occurred there.

3. This suit arises from a motor vehicle collision that occurred on Trolley Road in Summerville, South Carolina, County of Dorchester, on February 14, 2025.

4. On October 1, 2025, the Plaintiff submitted a claim for \$236,000.00, based on the allegations herein, to the United States Postal Service for administrative settlement. The United States Postal Service did not expressly deny the claim and six months have passed. Accordingly,

Plaintiff has complied with the requirements of the Federal Tort Claims Act for the timely filing of claims and hereby institutes the present lawsuit.

THE PARTIES

5. The Plaintiff, Eugene Rowan, is a resident of the County of Berkeley, South Carolina.

6. The United State Postal Service is, and was at all times relevant herein, a governmental agency of Defendant United States of America. Pursuant to the requirements of the Federal Tort Claims Act, 28 U.S.C. §2671 et seq., Defendant United States of America is the properly named defendant in this lawsuit.

FACTS COMMON TO ALL ACTIONS

7. On February 14, 2025, Plaintiff's 2021 Nissan sedan was struck by a U.S. Postal Service mail-delivery truck that was attempting to turn onto Trolley Road from a private drive in Summerville, South Carolina. A stop sign governs traffic from the private drive and the intersection with Trolley Road. At the same time, Plaintiff was traveling north and proceeding straight on Trolley Road. The driver of the U.S. Postal Service Truck, an agent or employee of the U.S. Postal Service (hereinafter "Defendant's driver"), suddenly pulled out on to Trolley Road and struck Plaintiff's vehicle. Defendant's driver failed to yield the right of way to Plaintiff and caused the collision. Plaintiff was injured in the collision.

8. At all times relevant, the driver of the U.S. Postal Service truck was an agent or employee of the United State Postal Service, an agency of Defendant United States of America, and acting within the course and scope of his agency or employment of the U.S. Postal Service, and under the direction and control of the U.S. Postal Service at the time of the subject collision.

FOR A FIRST CAUSE OF ACTION - NEGLIGENCE

9. Plaintiff incorporates by reference the paragraphs above as if fully set forth verbatim

herein.

10. Defendant and Defendant's driver owed a duty to Plaintiff to operate the U.S. Postal Service Truck safely, with reasonable care, and in accordance with all laws concerning the operation of a motor vehicle.

11. Defendant and Defendant's driver were negligent, willful, wanton, and reckless and breached the duties they owed to Plaintiff in one or more of the following ways:

- (a) In operating the U.S. Postal Service Truck in a negligent and/or reckless manner;
- (b) In driving too fast for the conditions;
- (c) Failing to use due care;
- (d) Failing to yield the right of way;
- (e) Failing to keep the U.S. Postal Service Truck under proper control;
- (f) Failing to keep a proper lookout;
- (g) Failing to have vehicle equipped with proper brakes and, if so equipped, in failing to timely apply the brakes;
- (h) Failing to use the degree of care and caution that a reasonably prudent driver would have used under the circumstances then and there prevailing;
- (i) Otherwise operating vehicle without exercising reasonable care and in a negligent, willful, wanton, and reckless manner; and
- (j) Violating various statues, codes, U.S. Postal Service requirements, and ordinances designed to protect the public, including Plaintiff, from the type of harm that was caused by the Defendant's conduct related to the subject collision.

12. Defendant and Defendant's driver's negligent, willful, wanton, and reckless conduct and breach of the duties they owed to Plaintiff were the direct and proximate cause of the February

14, 2025, collision described herein.

13. As a direct and proximate cause of Defendant and Defendant's driver's negligent, willful, wanton, and reckless conduct and breach of the duties owed to Plaintiff, Plaintiff sustained severe and debilitating injuries.

14. As a direct and proximate cause of Defendant and Defendant's driver's negligent, willful, wanton, and reckless conduct and breach of the duties owed to Plaintiff, Plaintiff has suffered damages in the form of physical injury and harm, past and future medical expenses, lost income, past and future physical and mental pain and suffering, mental, emotional, and psychological damage, and loss of enjoyment of life.

15. Plaintiff demands a jury trial.

WHEREFORE, Plaintiff demands judgment against Defendant for actual damages, including damages for physical injury and harm, past and future medical expenses, lost income, past and future physical and mental pain and suffering, mental, emotional, and psychological damage, loss of enjoyment of life, for the costs of this action, and for any additional relief this Court deems just and proper.

WHEREFORE, Plaintiff prays for the following:

- i. Judgment against Defendant for actual damages in an amount of \$236,000.00;
- ii. For the costs of this action; and
- iii. For such other and further relief as this court deems just and proper.

[Signature Page to Follow]

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North Charleston, South Carolina
June 16, 2026